

25STCV00862 25STCV00862

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C507%2C07%2F14%2F2026

Source SHA-256: b8020d9ca280c3742b04fd8e534dc5fe103bf750ef512a0ad5190658220b37f2

Case Number: 25STCV00862 Hearing Date: July 14, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: July 14, 2026 TRIAL DATE: NA

CASE: Jose E. Perez v. General Motors LLC et al.

CASE

NO.: 25STCV00862

MOTION FOR ATTORNEYS' FEES,
COSTS AND EXPENSES

MOVING

PARTY: Plaintiff Jose E. Perez

RESPONDING

PARTY(S): Defendant

General Motors LLC.

TENTATIVE RULING:

Plaintiff's Motion

for Attorneys' Fees and Costs is GRANTED IN PART.

Attorneys' fees in
the amount of \$9,685.00 are
awarded.

Costs are awarded in
the amount of \$787.80.

The fees and costs are
to be paid within 60 days of the date of this order.

Moving party to give
notice.

BACKGROUND

This
is a standard Song-Beverly or "lemon law" case brought under Civil Code section
1794.

Ultimately, the case, which used the standard AB
1755 procedure for resolving cases, settled relatively promptly prior to the
mandatory mediation required by that statute.

There
is no dispute that Plaintiff is the prevailing party. Under clear law, Plaintiff is entitled to an
award of reasonable attorneys' fees. (Civ. Code, § 1794(d).) Those fees must
not be tied to or limited by the amount Plaintiff received in settlement. (See
Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240, 251.)

The parties disagree about the reasonableness of the
fees and costs claimed and the appropriate lodestar amount.

Plaintiff
asks for fees as follows: (a) \$19,590 for work done by attorney Alex Khoubian
and paralegal services; (b) a "multiplier" of 1.3, adding an additional \$5,877
in fees; and (c) \$787.80 in costs and expenses.
GM challenges much of the time expended as unreasonable or unnecessary,
and also challenges the rates charged by Plaintiff's attorneys.

DISCUSSION:

A prevailing plaintiff in a Song

Beverly Act case is entitled to “a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the Court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ Code., § 1794, subd. (d).) “As the plain wording of section 1794, subdivision (d) makes clear, the trial court is to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.” (Mikhaeilpoor v. BMW of N. Am., LLC, supra, 48 Cal.App.5th at p. 247 [quotation marks omitted].)

In awarding these fees, the Court applies the

“lodestar” method. That requires the Court to (a) determine the actual time expended and then (b) determine whether under all the circumstances of the case the amount of actual time expended, and the monetary charge (generally, the billing rates of the attorneys involved) were reasonable. (Id.)

Reasonableness
of the Lodestar Calculation

Plaintiff has submitted evidence of billing records. Plaintiff seeks payment based on a lodestar amount, calculated as the time billed multiplied by the hourly rates of the attorneys involved.

The

Court has carefully considered the moving and opposition papers to see if the rates and the time were reasonable.

A. Attorney Rates

GM

challenges the reasonableness of the rates charged by attorney Khoubian and another attorney who did work in the matter, Phillip McCabe.

The

Court finds the rates requested to be eminently reasonable. The Court is extremely familiar with the work

done and rates charged by attorneys in the Los Angeles area in Song-Beverly cases. Mr. Khoubian billed at the rate of \$525 per hour. Plaintiff apparently seeks \$430 per hour for Mr. McCabe's work, according to a statement made in the moving papers (although the calculation in the motion seems to be based on the apparently erroneous assumption that Mr. McCabe's rate is \$525 per hour).

These amounts are, in the Court's experience, well within the norm for attorneys doing similar work. If anything, a \$525 per hour rate is on the low side. Certainly, the Court does not find the rate charged by Plaintiff's attorneys out of line with community norms. True, as GM argues, there are areas of law where average rates for partners and associates are substantially less. But for experienced lemon law counsel, \$525 per hour is well within the norm.

B. Attorney Time

GM also challenges the reasonableness of much of the time spent by the attorneys on the case. Here, the Court largely agrees with GM.

As noted, the Court is extremely familiar with the work of lemon law lawyers bringing similar cases. The volume of similar lemon law cases throughout the State is staggering. Accordingly, by necessity, much of any plaintiff's attorney's work in this and similar cases involves using form or template pleadings. Work at all stages is—and must be—done using forms and at extreme speed.

Indeed, in the Court's view, this and similar lemon-law cases are arranged along industrial lines.

Here, Plaintiff's fee request does not reasonably reflect the routinized nature of the work. GM submitted an opposition identifying specific issues with Plaintiff's billing requests. The Court agrees with many (but not all) of GM's

critiques of the specific billing requests.

The
Court’s specific concerns regarding unreasonable billing are set forth below.

Date

Claimed
Hours/Hourly Rate

Time
after reductions by Court

Reason
for Reduction

Dollar
Amount of Reduction

NA

\$3500
(flat fee)

\$250
(flat fee)

This
flat fee seeks compensation for an unspecified amount of time spent on
unspecified communications with the client.
It appears largely duplicative of other amounts charged. In any event the imputed amount of time (6.4
hours) is wildly excessive for the kinds of communications described.

\$3,250.00

6/9/25-6/23/25

\$1,362.50
(total)

0

Plaintiff

has agreed to withdraw the request for compensation for this time, which was related to a mediation never held.

\$1,362.50

5/11/26

4.6/\$525

1.0/\$430

Plaintiff

billed 4.6 hours for Mr. McCabe at a rate of \$525/hour for preparing Plaintiff's moving papers on fees and costs, although the motion claims Mr. McCabe's rate is \$430 per hour. In any event, a lemon law fee motion such as this one and supporting papers are form pleadings that in no way should take 4.1 hours to complete.

\$1,985.00

5/11/26

2.5/\$525

.5

Mr.

Khoubian also billed 2.5 hours in connection with preparation of the fees motion. Given Mr. McCabe's participation, no more than .5 hours is reasonable for this work.

\$1,050.00

TBD

5.3/\$525

1.0

This

time, billed for anticipated time spent by Mr. Khoubian in responding to the fees motion and doing related tasks, is wildly excessive given the routinized nature of a lemon law fees reply.

\$2,257.50

The

Court does not agree with some of GM's arguments concerning the reasonableness of time spent. First, although GM argues that the fee request improperly seeks compensation for clerical time, no specific billing item is identified by GM as improper for this reason. Second, while GM seeks to strike correspondence with the Plaintiff regarding settlement, the Court does not see that correspondence with the Plaintiff regarding settlement was, on its face, excessive or unreasonable.

Based

on the foregoing analysis, the total amount of the Court's reduction to incurred and anticipated fees is \$9,905.00.

The Court therefore reduces the total amount of fees requested from \$19,590.00 to \$9,685.00.

C. Multiplier

The

Court declines to award a multiplier. Nothing suggests the case was particularly unusual or risky. True, the case was brought on a contingency-fee basis. But the risk of that contingent representation was almost non-existent. By law, the Court's fee award cannot be tied to the amount recovered by a plaintiff. That means that, so long as Plaintiff achieved enough success on his lemon-law claim to make him a prevailing party (which, given the particular nature of Plaintiff's claims, was always very likely) Plaintiff's counsel knew or should have known that counsel would be entitled to fees for time expended.

Having

carefully reviewed the record, the Court sees nothing particularly unusual,
innovative, or difficult in the case. To
be clear, counsel appears to have achieved an excellent result. But a multiplier is not warranted.

Costs

GM does not dispute Plaintiff's
request for costs. The Court awards
costs in the requested amount of \$787.80.

CONCLUSION:

Plaintiff's Motion
for Attorneys' Fees and Costs is GRANTED IN PART.

Attorneys' fees in
the amount of \$9,685.00 are
awarded.

Costs are awarded in
the amount of \$787.80.

The fees and costs are
to be paid within 60 days of the date of this order.

Moving party to give
notice.

IT IS
SO ORDERED.

Dated: July 14, 2026 _____

Nicholas
F. Daum

Judge
of the Superior Court

Any party may submit on the

tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.